

24STCV03817 24STCV03817

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-09

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Case Number: 24STCV03817 Hearing Date: July 9, 2026 Dept: 732

Tatiana Davis, et al. v. San Joaquin Valley College,
Inc., et al.

Thursday, July 9, 2026

CASE NUMBER: 24STCV03817

UNOPPOSED

Defendant San

Joaquin Valley College's Motions to Compel Compliance with Subpoenas to
Nonparties Erica Robinson and Jennifer Kristin Brady

Facts: This is an
action for sexual harassment and discrimination. The First Amended Complaint
(FAC) alleges as follows. Plaintiffs are made up of members of two cohorts of
students at Defendant San Joaquin Valley College, Inc. (College) who attended a
class led by Defendant Trevor Doyle (Doyle). (FAC ¶¶ 20, 27.) During their time
in Doyle's class, he made numerous inappropriate sexual remarks and advances
toward Plaintiffs, and inappropriately touched or groped Plaintiffs. (FAC ¶¶
20–21, 28–29.) Despite Plaintiffs' complaints about Doyle's conduct, College
failed to discipline Doyle, allowing him to retaliate against Plaintiffs by
giving them artificially reduced grades. (FAC ¶¶ 25, 30.)

Procedural History: Plaintiffs filed the original Complaint

on February 14, 2024, and filed the FAC on March 26, 2024, alleging seven causes of action:

1.

Sexual Harassment (Civ. Code § 51.9)

2.

Sexual Battery (Civ. Code § 1708.5)

3.

Sexual Assault

4.

Negligence

5.

Intentional Infliction of Emotional Distress

6.

Negligent Hiring, Supervision, and Retention

7.

Sex Discrimination

On September 9, 2024, this court sustained with leave to amend Defendant Trevor Doyle's demurrer to the second cause of action for sexual battery asserted by Plaintiff Talitha Hooks, and as to the fifth cause of action for intentional infliction of emotional distress.

On October 15, 2025, this court denied Plaintiff Natasha Lee's motion to quash deposition subpoena to Caleb Bragg.

On December 18, 2025, this court granted in part Plaintiff Tatiyana Davis's motion to compel further responses to requests for production from Defendant Trevor Doyle.

On January 8, 2026, this court granted in part Plaintiffs Angela Howard, Abigail Inostroza, and Sydney Kline's

motions to compel further responses to requests for production from Defendant Doyle.

On January 21, 2026, this court granted Defendant Doyle's motion to quash subpoena.

On April 2, 2026, this court granted in part Plaintiffs' motion to compel further responses to requests for production from Defendant San Joaquin Valley College.

Defendant Trevor Doyle filed the present motion for relief from waiver on May 15, 2026. No opposition has been filed.

Analysis

I.

MOTION TO QUASH SUBPOENA

"If

a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Defendant

San Joaquin Valley College ("SJVC") moves to compel the compliance of nonparties Jennifer Kristen Brady ("Brady") and Erica Robinson ("Robinson") with subpoenas issued to them. The subpoena issued to Brady through the Department of Veterans Affairs on January 26, 2026, following service of a notice to consumer upon Plaintiff

Sydney Kline, seeks records related to Kline's treatment for various, specified mental health ailments at issue in this litigation. (Barker Decl. ¶¶ 3–5, Exh. B.) No objections to the subpoena were served, but the VA has indicated that it will not produce documents absent a court order or signed authorization of the patient concerned. (Barker Decl. Exh. D.) Kline has declined to execute such an authorization. (Barker Decl. ¶ 10.)

The

subpoena to Robinson was served on January 28, 2026, following service of a notice of consumer upon Plaintiff Abigail Inostroza, whose records are sought. (Barker Decl. ¶¶ 2–5, Exh. B.) This subpoena likewise seeks records related to specified mental health ailments that are at issue in this litigation and for which Inostroza indicated she sought treatment with Robinson. (Barker Decl. Exhs. A, B.) No objection to the subpoena was served, but Robinson too has indicated that no production will take place absent a signed authorization by the patient or an order signed by a judge. (Barker Decl. ¶¶ 8–9.)

SJVC

here seeks a court order compelling Brady and Robinson to comply with the subpoenas. It notes that under Civil Code § 56.10, requires disclosure of medical information if disclosure is compelled by “[a] party to a proceeding before a court or administrative agency pursuant to a subpoena, subpoena duces tecum, notice to appear served pursuant to Section 1987 of the Code of Civil Procedure, or any provision authorizing discovery in a proceeding before a court or administrative agency.” (Civ. Code, § 56.10, subd. (b)(3).) SJVC also cites 45 CFR § 164.512, which authorizes disclosure of medical records “[i]n response to a subpoena, discovery request, or other lawful process, that is not accompanied by an order of a court or administrative tribunal,” provided the party seeking disclosure makes adequate assurances that the person whose records are sought has been apprised of the request. (45 CFR § 164.512, subd. (e)(1)(ii).)

SJVC

demonstrates good cause for the discovery sought, which relates to treatment records for injuries at issue in the present litigation. The subpoenas seek private medical information, but limited to the issues tendered by the plaintiffs whose documents are at issue, and for which no objection has been served or opposition filed.

Accordingly,

the motions to compel compliance are GRANTED. The requested documents shall be produced within 30 days of this order.

1.

Sanctions

Except

in circumstances not applicable here, “the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive.” (Code Civ. Proc. § 1987.2, subd. (a); see also Code Civ. Proc. § 2020.240 [stating that deponent who disobeys subpoena “may be punished for contempt”].)

SJVC

seeks \$3,250.00 in sanctions against Robinson only, representing ten hours of attorney work at \$325 per hour associated with bringing the present motion, plus a \$500 penalty assessed under Code of Civil Procedure § 1992. (Barker Decl. ¶ 12; Motion at pp. 6–7.)

Sanctions

are not warranted here. “A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought.” (Code Civ. Proc., § 2023.040.) SJVC has served Robinson with the motion, but does not include its request for sanctions in the notice of motion. Said request is included only in the latter part of its memorandum. (Motion at pp. 6–7.) Robinson is a nonparty who has raised no substantive objections to the subpoena, and she is evidently not represented by counsel. Failure to comply with sanctions notice provisions in this circumstance is therefore material. Additionally, although SJVC presents authority for the proposition that a court order signed by a judge is not necessary to compel the production of medical records under Civ. Code, § 56.10 and 45 CFR § 164.512, the meet-and-confer correspondence that preceded the motion contains no citation to these statutes. (Barker Decl. Exhs. D–F.) No sanctions are therefore warranted here.

Superior Court of California

County of Los Angeles

Department 732

TATIYANA
DAVIS, et al.

Plaintiffs

v.

SAN JOAQUIN VALLEY COLLEGE, INC.,
et al.,

Defendants.

Case No.:
24STCV03817

Hearing Date: July 9, 2026

[TENTATIVE] RULING RE:

Defendant

San Joaquin Valley College's Motions to Compel Compliance with Subpoenas to
Nonparties Erica Robinson and Jennifer Kristin Brady

Defendant

San Joaquin Valley College's Motions to Compel Compliance with Subpoenas to
Nonparties Erica Robinson and Jennifer Kristin Brady are GRANTED. Responsive
production shall take place within 30 days of this order. No sanctions are
awarded.

Defendant to give notice.

Dated: July 9, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court